

25LBCV00100 25LBCV00100

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-09-10

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Case Number: 25LBCV00100 Hearing Date: September 10, 2026 Dept: S25

Motion: Defendant The Vons Companies, Inc.'s Motion to Compel Plaintiff Bobbie Ann Shett to Appear for Spine Physical Examination

Moving Party: Defendant The Vons Companies, Inc. ("Defendant")

Responding Party: Plaintiff Bobbie Ann Shett ("Plaintiff")

Tentative Ruling

If a defendant seeks to obtain an additional mental examination of a plaintiff, the defendant must obtain leave of court. (Code Civ. Proc., § 2032.310, subd. (a).) A motion to compel an additional mental examination must "specify the time, place, manner, conditions, scope and nature of the examination, as well as the identity and specialty, if any, of the person or persons who will perform the examination," and must include a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) Additionally, the defendant must make a showing of "good cause" to obtain the second mental examination. (Code Civ. Proc., § 2032.320, subd. (a).) Under the Discovery Act, there is no limit on the number of mental or physical examinations, provided that a showing of good cause is made to justify more than one mental or physical examination of a party. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249, 1255.) The Shapira court also noted that "multiple examinations should not be ordered routinely; the good cause requirement will check the potential harassment of plaintiffs by repetitive examinations," and "multiple examinations by medical specialists in different fields" may be necessary based upon a plaintiff's claimed injuries. (Ibid.)

The parties have sufficiently met and conferred. (Herzog Decl., ¶ 14, Ex. J.)

Defendant moves the Court for leave to conduct an independent medical examination of Plaintiff by Dr. Yoshida, an orthopedic spine surgeon, on September 29, 2026 at 10:00 AM or at such time and place as the Court may direct. Defendant contends that good cause exists to obtain an additional mental examination of Plaintiff because Plaintiff claims spinal injuries alongside other injuries. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249, 1254.) Defendant states that the July 31, 2026 examination by Dr. Kim addresses Plaintiff's claimed knee, foot and shoulder injuries.

NO OPPOSITION HAS BEEN RECEIVED.

The Court grants the instant motion as spinal injuries have been claimed and the first medical examination with Dr. Kim did not evaluate Plaintiff's spinal injuries. (Shapira v. Superior Court (1990) 224 Cal.App.3d 1249, 1255; Herzog Decl., ¶¶ 5-8, Exs. A-C.) Good cause has been shown by Defendant to justify an independent medical examination.

The Court further orders the parties to find a mutually agreeable date for the independent medical examination to occur within 30 days of this hearing.

The instant motion is GRANTED. Plaintiff is ordered to submit to an orthopedic spine physical examination by Gregory Yoshida, M.D., and the parties must find a mutually agreeable date, time and place for the independent medical examination to occur within 30 days of this hearing.